

Pushpendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 17 December 2019 · Writ-C No. 41751 of 2019 · **Writ disposed; objections before EE; s.127 left open; coercive action stayed.**

HEADNOTE

Challenging recovery of Rs 8,36,398 on the plea that the provisional assessment had not been supplied and no hearing had been given under the U.P. Electricity Supply Code, 2005, the consumer was directed to appear before the Executive Engineer with objections and evidence. A speaking final order was to follow within four weeks; coercive action was stayed for seven weeks or until disposal of the objection; and an appeal under section 127 of the Electricity Act, 2003 was left open against that final order. Non-appearance would revive the demand. The writ was disposed of without examining the merits of the assessment.

FACTUAL SUMMARY

Pushpendra Singh challenged an order dated 22 October 2019 of the Executive Engineer and a recovery citation dated 6 December 2019 demanding Rs 8,36,398, together with the recovery proceedings founded on those instruments. He alleged that a copy of the provisional assessment had not been supplied, that coercive steps were being taken without a hearing, and that the U.P. Electricity Supply Code, 2005 had not been followed. Counsel for the electricity department undertook to supply the provisional assessment within one week.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after directed final assessment

HOLDING

Without deciding the merits of the Rs 8,36,398 demand, the Court directed the consumer to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks thereafter, stayed coercive action for seven weeks or until disposal of the objection, whichever was earlier, and left the consumer, if aggrieved by that final order, to an appeal under section 127 of the Electricity Act, 2003. Failure to appear and object would automatically revive the demand. The writ was disposed of on those terms. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the consumer's objections to the unpaid demand, the Court disposed of the writ without examining the assessment or recovery and left the consumer to a section 127 appeal if aggrieved by that order. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal The Court expressly reserved the consumer's remedy against the Executive Engineer's forthcoming final order to an appeal under section 127 of the Electricity Act, 2003 in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND OF RS 8,36,398 AND THE VALIDITY OF THE ORDER DATED 22 OCTOBER 2019 AND THE RECOVERY CITATION

Writ disposed by directing objections and a speaking final order, without examining the assessment or recovery. ¶ 1

NOT DECIDED — WHETHER RECOVERY WITHOUT SUPPLY OF THE PROVISIONAL ASSESSMENT OR A HEARING VIOLATED THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised as the ground of challenge; the Court recorded the licensee's undertaking to supply the provisional assessment and did not decide the Code point. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.